

When the complaint in this matter was filed on May 9, 2023, the plaintiff requested and was granted a waiver of court fees.

On June 2, 2025, Defendant filed a cross complaint against the Plaintiff. Plaintiff did not answer or otherwise respond to the cross complaint and Plaintiff's default on the Cross-complaint was entered by the clerk on July 15, 2025.

On September 5, 2025, the court granted Defendant's motion to compel Plaintiff to provide responses to requests for first set of written discovery. The court ordered Plaintiff to serve "code-compliant, objection free, verified responses along with responsive documents" in 60 days. Sanctions were denied. Plaintiff has not complied with the court's September 5, 2025 order.

Defendant filed the instant motion to compel on November 5, 2025, and hearing was set for February 20, 2026. No opposition was filed.

On December 11, 2025, Defendant filed a motion to compel Plaintiff's attendance at deposition. Hearing was set for March 27, 2026.

On February 6, 2026, the court ordered the Complaint dismissed without prejudice for failures to appear at court proceedings, including failure to respond to an order to show cause why the Complaint should not be dismissed.

The court **denies** the Defendant's motion to compel as moot. After the Defendant filed the instant motion, Plaintiff's original complaint was dismissed. Plaintiff had already defaulted on the Cross-Complaint. Therefore no further discovery is warranted. Sanctions are denied.

For the same reason, the court also orders Defendant's Motion to Compel Plaintiff's Attendance at Deposition, currently set for hearing on March 27, 2026 at 9:00 a.m. in Department to be **dropped from calendar**.

The court will maintain the date of April 21, 2026 at 8:30 a.m. for the Order to Show Cause issued by Judge Treat as to Attorney James Marzan to appear and show cause, if cause there be why the Cross-Complaint against Cross-Defendant Danielle DeMotto should not be dismissed for failure to prosecute.

Law & Motion
Add on

18. 9:00 AM CASE NUMBER: C24-00152
CASE NAME: DEANDRANAE JONES VS. DAVE & BUSTER'S OF CALIFORNIA, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY:
TENTATIVE RULING:

Before the Court is the Motion of Defendant Dave & Buster's of California, Inc. ("Defendant" or "Dave

& Buster's") to Compel Plaintiff's Further Discovery Responses to First Set Of Request for Production of Documents, filed October 31, 2025.

At issue is a single but central request for documents, Defendant's Demand for Inspection (the court will use the abbreviation "RFP" for "Request for Production") No. 48. Defendant's RFP No. 48 served on June 2, 2025, and Plaintiff's response, served on July 16, 2025 were as follows:

[Defendant's] DEMAND FOR INSPECTION NO. 48:

All DOCUMENTS that depict YOUR income from 2017 to the present (e.g., IRS Form W-2s, 1099s, earning statements, paystubs, etc.).

[Plaintiff's] RESPONSE TO DEMAND NO. 48:

Pursuant to Code of Civil Procedure § 2031.230, a diligent search and a reasonable inquiry has been made. Plaintiff is unable to comply because the particular item is no longer in the possession, custody, or control of Plaintiff. Discovery and investigation are ongoing. Plaintiff reserves the right to amend and/or supplement this response.

Meet and Confer and Agreements to Extend Deadline for Plaintiff's Response

The parties have met their meet and confer requirements, as outlined in their respective pleadings. Kaylen Kadotani, counsel for Dave & Buster's sent Plaintiff's counsel a detailed meet and confer letter on August 18, 2025. (Decl. of Cody M. Christiansen, "Christiansen Decl." Ex. C)

Having received no response, Dave & Buster's followed up on August 27, 2025, and Plaintiff's counsel replied only to confirm additional time to review the letter—without providing a substantive response. (Declaration of Breana Burgos, "Burgos Decl.," at ¶ 5; Exh. D.)

Dave & Buster's counsel followed up again on September 15 noting that no substantive response had been provided and again offering to move the motion to compel date to allow Plaintiff more time to review the meet and confer letter. (Burgos Decl., at ¶ 6; Exh. D.) Plaintiff's counsel responded that same day, confirmed they needed more time to review, and asked to move the deadline to October 15, 2025. (*Id.*, Exh. D) In an email dated September 16, 2025, Dave & Buster's agreed to move the motion to compel deadline once again, to October 15, 2025. (*Id.*, Exh. D.)

Dave & Buster's attorney followed up again on September 29 seeking a response to the meet and confer letter sent on August 18. (Burgos Decl., at ¶ 7; Exh. D.)

On October 6, 2025 Plaintiff responded, but failed to address or otherwise include her position as to RFP No. 48. (Christiansen Decl. Ex. D) Plaintiff acknowledged it "inadvertently" did not address RFP in its October 6, 2025 letter. (Christiansen Decl., ¶ 25, Ex. D.)

Plaintiff's counsel sent a letter to Defendant's counsel on October 29, 2025 asserting privacy and privilege objections. (Christiansen Decl., Ex. E.)

Defendant's counsel emailed Plaintiff on October 31, 2025 at 4:48 pm recapping the arguments and including the argument that no documents have been received to support the Plaintiff's response to Form interrogatories that she was making approximately \$6000 a month for a total of \$138,000 in lost

income. (Christiansen Decl., Ex. F.)

Factual Background

Plaintiff alleges she was injured in a third-party criminal shooting that occurred at Defendant's Dave & Buster's establishment. Plaintiff alleges that prior to the incident, she operated her own beauty salon and earned approximately \$6,000 per month and was unable to return to work for nearly two years. Plaintiff's responses to Form Interrogatories indicate that she is seeking \$6,000 per month in lost income for a total of \$138,000.

Defendant reports that Plaintiff has produced no documents to date.

Discussion

Waiver

The court agrees that Plaintiff has waived all objections by failing to assert them in her response. Code of Civil Procedure (CCP) § 2031.300 provides that any objection not timely asserted in a response to a request for production is waived. (See also, *Henry Mayo Newhall Mem. Hosp. v. Superior Court* (1978) 81 Cal.App.3d 626, 636 ["[t]he failure to make timely objections [to a discovery request] constitutes a waiver."].) Plaintiff's response to RFP was served on July 16, 2025. Defendant extended the deadline for Plaintiff to respond to the RFP more than once, and finally to extended the deadline October 15, 2025, at Plaintiff's request. Plaintiff first raised these objections on October 29, 2025, three months and a half months after her initial response, and two weeks after the deadline she herself requested and obtained from Defendant, (Christiansen Decl. ¶¶ 28-29, Ex. E, Burgos Decl., Exh. D.) Plaintiff tacitly acknowledged these objections were claimed for the first time on October 29, 2025 in its Separate Statement in Opposition (filed January 29, 2026, at page two), in the argument titled "Amended Response to Request No. 48 (*Asserted October 29, 2025*)." (Emphasis added.)

Section 2031.270 of the CCP requires that an agreement to extend the time for production of items must be in writing. Section 2031.270 states:

(a) The party demanding inspection, copying, testing, or sampling and the responding party may agree to extend the date for the inspection, copying, testing, or sampling or the time for service of a response to a set of demands, or to particular items or categories of items in a set, to a date or dates beyond those provided in [Sections 031.030](#), [2031.210](#), [2031.260](#), and [2031.280](#).

(b) This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date for inspection, copying, testing, or sampling, or for the service of a response.

CCP § 2031.270.

The record here contains letters agreeing to an extension of time to October 15, 2025. (Burgos Decl. ¶ 6, Ex. D) There was no evidence of a written agreement to an extension of time for Plaintiff to serve its objections and response on October 29, 2025. The assertion of the tax return privilege was untimely.

The court notes that CCP § 2031.040 requires that a party objecting to the production of item based on a claim of privilege must identify the documents with particularity, specify the ground for objection, and produce a privilege log. There is nothing in the Plaintiff's pleadings to indicate this was done. Section 2031.040 provides in relevant part:

(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated.

(c) (1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

CCP §§ 2031.040(b)-(c)

There is nothing in the record that demonstrates Plaintiff complied with CCP Section 2031.040 to assert a claim of privilege in its response to the Defendant's RFP No. 48.

Plaintiff argues that the waiver rule does not apply "with equal force" to objections based on fundamental constitutional rights and statutory privilege but cites no statutory or legal authority in support of the argument.

The court finds that Plaintiff's assertion of the objections based on privacy grounds and the tax return privilege was untimely and incomplete as to the lack of a privilege log, and that the objections are waived.

Plaintiff's Objections are Overbroad and Refusal to Produce any Documents is Unreasonable

Plaintiff focuses her arguments on privacy objections and the tax return privilege. These objections are overbroad.

Plaintiff has refused to produce *any* documents in response to RFD No. 48 which seeks "All DOCUMENTS that depict YOUR income from 2017 to the present (e.g., IRS Form W-2s, 1099s, earning statements, paystubs, etc.). Even assuming the tax return privilege was not waived, there are multitudinous documents that may "depict" income outside of tax returns: 1099-MISC forms, Profit & Loss Statements, business bank or credit union statements, business credit card account statements, appointment books or records, or business checkbook ledgers, to name a few. Plaintiff has failed to produce *any* financial documents depicting her income, even ones over which no privilege arguably exists.

To the extent that Plaintiff may claim these documents don't exist after "a diligent search and a

reasonable inquiry,” that strengthens the Defendant’s argument that tax returns may be the only source of reliable information regarding Plaintiff’s alleged loss of income.

Gravamen of the lawsuit / lack of alternatives

The Plaintiff has stated in an interrogatory response that she was “making approximately \$6000 a month for a total of \$138,000 in lost income.” She asserts an inability to produce documents based on objections that “a diligent search and a reasonable inquiry has been made...and because the particular item is no longer in the possession, custody, or control of Plaintiff.” She has failed to produce any non-privileged documents depicting her income, and she has failed to produce a privilege log for documents that she asserts are privileged. She contends that an expert will be able to testify as to lost income on the basis of documents that Defendant will be able to request in discovery in the future, as part of expert discovery, but does not explain why such documents cannot be produced at this time.

The Plaintiff’s claim for lost wages based on causes of action arising out of allegations of personal injury have put her income at issue. Normally, this alone would not overcome the tax return privilege, but where the privilege was not asserted in a timely fashion, where a privilege log was not produced, and where the plaintiff has absolutely refused to identify or produce documents *of any kind* depicting her income, court finds Plaintiff has impliedly waived the privilege. The Defendant has no other alternative for documents supporting the Plaintiff’s assertion that she was at any time making \$6,000 a month in income.

Order

The Court **grants** the Motion of Defendant Dave & Buster’s of California, Inc. to Compel Plaintiff’s Further Discovery Responses to First Set of Request for Production of Documents. The court orders that Plaintiff produce all responsive documents with a verified code compliant response within 45 calendar days. The court orders that Plaintiff may redact Social Security numbers (her own or that of any third party) from her production of documents. The court further orders that prior to the production of Plaintiff’s documents, the parties negotiate and submit for court approval a protective order providing that the parties not use documents or information produced in discovery for any purpose outside of the instant lawsuit. Should Plaintiff unreasonably delay her agreement to such a protective order, the Defendant may, upon a showing of good faith meet and confer efforts with Plaintiff, submit a Proposed Protective Order to the court on an *ex parte* basis.

Sanctions

Plaintiff’s failure to identify or produce any documents at all, combined with the untimely assertion of objections warrants sanctions. The court finds Plaintiff acted without substantial justification in failing to assert a privilege until three and a half months after it made its initial response, and two weeks after the deadline which she herself had requested from defendant, in failing to identify or produce non-privileged documents, and in failing to produce a privilege log even as it argued documents were privileged. Also the court finds the Plaintiff’s purported justification, that an expert will answer questions about the Plaintiff’s income and the Defendant may in the future request documents relied on by the expert—does not make sense—if Plaintiff has documents that an expert may use to testify

about lost income, why isn't the Plaintiff producing those documents now?

The Court may impose monetary sanctions, including attorney fees, against a party engaging in a misuse of the discovery process. (CCP § 2023.030(a).) Relevant misuses of the discovery process include: (1) failing to respond to an authorized method of discovery; (2) making, without substantial justification, an unmeritorious objection to discovery; and/or (3) making an evasive response to discovery. (CCP § 2023.010, subds. (d), (e), (f).)

Plaintiff has requested sanctions of \$7,810.00 against Plaintiff and her attorneys at The Barnes Firm, L.C., for reasonable attorney's fees and costs. The court appreciates the time involved in a discovery motion of this magnitude, and finds that after all is said and done it was a single document request, on a few limited issues. Taking into account the pleadings prepared in this case, the court awards sanctions against Plaintiff's counsel in the amount of \$3900, roughly half the amount sought, due within 20 days of service of entry of this order.

Law & Motion
Add On 2

19. 9:00 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT FILED BY SUNPOINT PUBLIC ADJUSTERS INC.**

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Cross-Defendant SUNPOINT PUBLIC ADJUSTERS, INC.'s Motion to Strike. The Motion to Strike relates to Cross-Complainants GARY JOHNSON, KEVIN JOHNSON, and JOHNSON AND JOHNSON CONSULTING, INC's Second Amended Cross Complaint ("2AXC"). For the following reasons, the Motion to Strike is denied in its entirety.

Cross-Defendants move to strike the 2AXC in its entirety, arguing that it was filed four days past the statutory 10-day deadline. (MTS p. 4: 5-12.)

Procedural Background

The hearing in which the FAXC was granted with leave to amend took place on August 7, 2025. The order after hearing was executed on August 19, 2025, and filed by the court on August 20, 2025. The proof of service for the order was filed on September 29, 2025. The 2AXC was filed on August 15, 2025.

Analysis